

BLACKMUN, J., dissenting

citizen suits in the federal courts for injuries deemed “procedural” in nature. I dissent.

I

Article III of the Constitution confines the federal courts to adjudication of actual “Cases” and “Controversies.” To ensure the presence of a “case” or “controversy,” this Court has held that Article III requires, as an irreducible minimum, that a plaintiff allege (1) an injury that is (2) “fairly traceable to the defendant’s allegedly unlawful conduct” and that is (3) “likely to be redressed by the requested relief.” *Allen v. Wright*, 468 U. S. 737, 751 (1984).

A

To survive petitioner’s motion for summary judgment on standing, respondents need not prove that they are actually or imminently harmed. They need show only a “genuine issue” of material fact as to standing. Fed. Rule Civ. Proc. 56(c). This is not a heavy burden. A “genuine issue” exists so long as “the evidence is such that a reasonable jury could return a verdict for the nonmoving party [respondents].” *Anderson v. Liberty Lobby, Inc.*, 477 U. S. 242, 248 (1986). This Court’s “function is not [it]self to weigh the evidence and determine the truth of the matter but to determine whether there is a genuine issue for trial.” *Id.*, at 249.

The Court never mentions the “genuine issue” standard. Rather, the Court refers to the type of evidence it feels respondents failed to produce, namely, “affidavits or other evidence showing, through specific facts” the existence of injury. *Ante*, at 563. The Court thereby confuses respondents’ evidentiary burden (*i. e.*, affidavits asserting “specific facts”) in withstanding a summary judgment motion under Rule 56(e) with the standard of proof (*i. e.*, the existence of a “genuine issue” of “material fact”) under Rule 56(c).